POWER OF ATTORNEY AND DELEGATION OF AUTHORITY

BY PARENT, CUSTODIAN, OR GUARDIAN CONCERNING MINOR CHILD(REN) OR WARD(S) PURSUANT TO N.J.S. 3B:12-39

PARTIES

This power of attorney is made between the parent(s), custodian(s), or guardian(s) identified below and the alternative caregiver identified below, referred to here as “attorney-in-fact.”

Name(s) of parent(s), custodian(s), or guardian(s):

Address(es) of parent(s), custodian(s), or guardian(s):

Telephone number(s) of parent(s), custodian(s), or guardian(s):

Name of alternative caregiver / attorney-in-fact:

Home address of alternative caregiver:

Telephone number of alternative caregiver:

CONSENT OF OTHER PARENT / SHARED LEGAL CUSTODY

If a parent is signing, the other parent must generally also sign below to show consent. Similarly, if a custodian who shares legal custody with a parent is signing, the parent who shares legal custody must generally also sign below to show consent. If such parent does not sign below, please check off reason(s) to explain why:

- ☐ Such parent is deceased.
- ☐ By order of a court of competent jurisdiction, such parent retains neither legal nor physical custody of child(ren).
- ☐ Such parent is mentally or physically unable to give consent.
- ☐ Such parent has not been involved in raising or financially supporting child(ren) for two years or a third of the life of the child(ren), whichever is less, immediately preceding the date of the latest signature below.
- ☐ Identity or whereabouts of such parent are unknown to me.
- ☐ Despite diligent efforts described below, I was unable to reach such parent.

Diligent efforts included:

☐ Other:

Please explain “Other” reason:

CHILD(REN) / WARD(S)

I/we appoint said attorney-in-fact, pursuant to N.J.S. 3B:12-39, and delegate to said attorney-in-fact the following powers, all of which I/we possess, concerning the care, custody, and/or property of my/our child(ren)/ward(s). Add other children’s or wards’ names and birthdates as appropriate.

Name of child/ward	Date of birth
Name of child/ward	Date of birth
Name of child/ward	Date of birth
Name of child/ward	Date of birth

DELEGATED POWERS

☐ Care-Giving. The attorney-in-fact shall have temporary care-giving authority for the child(ren)/ward(s), until such time as the child(ren)/ward(s) is/are returned to our/my physical custody, or his/her/their custody status is altered by a federal, state, or local agency; or changed by a court of law.

☐ Well-Being. The attorney-in-fact shall have the power to provide for the physical and mental well-being of the child(ren)/ward(s), including but not limited to providing food and shelter.

☐ Education. The attorney-in-fact shall have the authority to enroll the child(ren)/ward(s) in the appropriate educational institutions; obtain access to his/her/their school records; authorize his/her/their participation in school activities; and make any and all decisions related to his/her/their education, including, but not limited to, those related to special education.

☐ Health Care. The attorney-in-fact shall have the authority, to the same extent that a parent/custodian/guardian would have the authority, to make medical, dental, and mental health decisions; to sign documents, waivers and releases required by a hospital or physician; to access medical, dental, or mental health records concerning the child(ren)/ward(s); to authorize his/her/their admission to or discharge from any hospital or medical care facility; to consult with any provider of health care; to consent to the provision, withholding, modification or withdrawal of any health care procedure; and to make other decisions related to the health care needs of the child(ren)/ward(s).

☐ Travel. The attorney-in-fact shall have the authority to make travel arrangements on behalf of the child(ren)/ward(s) for destinations both inside and outside of the United States by air and/or ground transportation; to accompany the child(ren)/ward(s) on any such trips; and to make any and all related arrangements on behalf of the child(ren)/ward(s), including but not limited to hotel accommodations.

☐ Financial Interests. The attorney-in-fact may handle any and all financial affairs and any and all personal and legal matters concerning the child(ren)/ward(s).

☐ All Other Powers. The attorney-in-fact shall have the authority to handle and engage in any and all other matters relating to the care, custody, and property of the child or ward which are permitted pursuant to applicable State law.

ACTIVATING EVENT

By this delegation, I/we provide that the attorney-in-fact's authority shall take effect upon the following "activating event" (check all that apply):

☐ The execution of this document on the latest date below; or

☐ My attending physician concludes that I am mentally incapacitated, and thus unable to care for my child(ren)/ward(s); or

☐ My attending physician concludes that I am physically debilitated, and thus unable to care for my child(ren)/ward(s); or

☐ I am detained in immigration detention, removed, or deported; or

☐ I am incarcerated based on criminal charges, including pending charges, or conviction; or

☐ I am deployed in military service; or

☐ Upon my death, if I have made no more permanent care arrangements for my minor child or minor ward.

☐ Other (specify reason):

ALTERNATE ATTORNEY-IN-FACT

In the event that the person designated above is unable or unwilling to act as attorney-in-fact to my child(ren)/ward(s), I hereby name the following person as alternate attorney-in-fact of my child(ren)/ward(s):

Name of alternate attorney-in-fact:

Address of alternate attorney-in-fact:

Telephone number of alternate attorney-in-fact:

TERM, PHYSICIAN STATEMENT, AND RETAINED PARENTAL RIGHTS

I/we understand that this delegation will expire one year from the execution of this document on the latest date below, and that the authority of the attorney-in-fact, if any, will cease, unless by that date (i) I renew this delegation, by the same process applicable to the original delegation, or (ii) a court of competent jurisdiction appoints a custodian, guardian, or standby guardian for the minor child or ward, or (iii) exigent circumstances make it impossible for me to renew this delegation, and I have not made alternative care arrangements for my minor child(ren)/minor ward(s).

I/we hereby authorize that the attorney-in-fact as set forth above shall be provided with a copy of my/our attending physician's statement(s), if applicable.

In the event that an activating event occurs and a power of attorney is activated pursuant to this statement, I declare that it is my intention to retain full parental rights to the extent consistent with my condition and circumstances and, further, that I retain the authority to revoke the power of attorney consistent with my rights herein at any time.

SIGNATURES

Parent’s/Custodian’s/Guardian’s Signature:

Date:

Signature of other parent or of parent who shares legal custody with a custodian who signed above:

Date:

WITNESSES

Witness's Signature:

Address:

Date:

Witness's Signature:

Address:

Date: